

No.DOPT-1668597747466
Government of India
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel and Training
AVD(AVD-I/C-I)

North Block, New Delhi
Dated 16 November, 2022

OFFICE MEMORANDUM

Subject:- Grant of Honorarium to Inquiry Officers / Presenting Officers in the departmental inquiries conducted by the Ministries / Departments - reg.

The undersigned is directed to refer to the subject mentioned above and to say that the rates of honorarium payable to Inquiry Officer (IO) / Presenting Officer (PO) in the case of departmental inquiries were last revised vide [O.M No.142/15/2010-AVD.I dated 31st July, 2012](#) in the case of serving Government Servants functioning as part time IO/PO and vide [O.M No.142/40/2015-AVD.I dated 15th September, 2017](#) in the case of retired Govt. Servants functioning as IO.

2. The existing rates of honorarium as prescribed in the aforesaid OMs were reviewed in consultation with Department of Expenditure and it has been decided to revise the existing rates of the honorarium payable to IO/PO.

3. Accordingly, these consolidated guidelines are being issued in supersession of DoPT's OM's dated 31.07.2012 and 15.09.2017.

4. The rates of honorarium as revised are indicated in the table below:-

a. The rates of honorarium payable to the Inquiry Officer:

(i) Retired officers:

Items	Category		Rate per case (in rupees)
Honorarium	I	where number of witnesses cited in the charge sheet is more than 10	An amount equal to 90% of the monthly basic pension drawn.
	II	where number of witnesses cited in the charge sheet are between 6-10	An amount equal to 70% of the monthly basic pension drawn.
	III	where number of witnesses cited in the charge sheet is less than 6	An amount equal to 60% of the monthly basic pension drawn.
Transport Allowance		Rs. 40,000/- per case Subject to the condition that the for outstation journey, the actual expenses for air travel / railways journey will be reimbursed in addition as per their entitled class at the time of their retirement (further subject to the approval of the competent authority and in compliance of the instructions issued by DoPT/DoE from time to time for air travel regarding booking of air tickets through authorized agencies and cheapest available fare).	

Daily Allowance		Same as the officer was entitled to immediately prior to retirement.	
Secretarial Assistance	I	where the number of witnesses cited in the charge sheet is more than 10	Rs. 40,000/-
	II	where the number of witnesses cited in the charge sheet are between 6-10	Rs. 30,000/-
	III	where the number of witnesses cited in the charge sheet is less than 6	Rs. 20,000/-

(ii) Serving officers:

Rate per case (in rupees)
An amount equal to 15% of the monthly basic pay drawn.

(iii) In case of common disciplinary proceedings, an additional amount of honorarium of Rs. 5000 will be payable to Inquiry Officer (both retired and serving) for every additional charged officer.

(b) The rates of honorarium payable to the Presenting Officer:

Rate per case (in rupees)
An amount equal to 10% of the monthly basic pay drawn.

5. The revised structure of rates of honorarium and allowances as indicated above are intended to be made applicable to Departmental Proceedings including inquiry proceedings undertaken by the committee on Sexual Harassment, by Ministries / Departments in respect of officials / officers serving under different cadres of services under their administrative control. However, in case a cadre of a service or organizations such as autonomous bodies have a separate set of rules and instructions for regulating honorarium to IO / PO in existence, they may choose to continue with their own set of instructions. Fully or partially funded autonomous bodies may retain their own provisions so long as they are not more beneficial than what has been proposed in this O.M.

6. The grant of Honorarium in the case of serving Government servants who are appointed as part time Inquiry Officer/ Presenting Officer and retired Government servants appointed as Inquiry Officers will be subject to the following conditions:

- i. The honorarium will normally be regulated under the financial powers delegated to the Ministries/Departments and taking into account the quantum of work involved in individual disciplinary cases.
- ii. In the case where serving officers are appointed as IO/PO, the controlling department or the administrative department should make all efforts to relieve the IO/PO of his normal duties to enable him/her to complete the proceedings expeditiously.

7. Before the payment is received by the Inquiry Officer/Presenting Officer, whether serving or retired, it will be the responsibility of IO/PO to ensure that:

- a. All case records and inquiry report (two ink signed copies) properly documented and

arranged is handed over to the office of Disciplinary Authority.

- b. The report returns findings on each of the Articles of Charge which has been enquired into should specifically deal and address each of the procedural objections, if any, raised by the charged officers as per the extant rules and instructions.
 - c. There should not be any ambiguity in the inquiry report and therefore every care should be taken to ensure that all procedures for conducting departmental inquiries have been followed in accordance with the relevant rules/instructions of disciplinary and appeal Rules to which the delinquent Government officials are governed.
8. Terms and conditions for appointment of Inquiry Officer: The designated Inquiry Officer shall be required to give an undertaking as follows:
- i. that he/she is not a witness or a complainant in the matter to be inquired into or a close relative or a known friend of the delinquent Government officer. A certificate to this effect will be obtained from the Inquiry Officer with respect to every inquiry and placed on record;
 - ii. shall maintain strict secrecy in relation to the documents he/she receives or information/ data collected by him/her in connection with the inquiry and utilize the same only for the purpose of inquiry in the case entrusted to him/her.
9. No such documents/information or data shall be divulged to anyone during the Inquiry or after presentation of the Inquiry Report. All the records, reports etc. available with the Inquiry Officer shall be duly returned to the authority which appointed him/her as such, at the time of presentation of the Inquiry Report.
10. The Inquiry Officer shall conduct the inquiry proceedings at a location taking into account the availability of records, station/place where the misconduct occurred as well as the convenience of the witnesses/ PO etc. Video Conferencing should be utilized to the maximum extent possible to minimize travel undertaken by the IO/PO/CO. The cadre controlling authorities will facilitate necessary arrangements for the Video Conferencing.
11. The Inquiry Officer shall undertake travel for conducting inquiry (in unavoidable circumstances) with the approval of an authority as may be nominated by the concerned Ministry/Department.
12. The Inquiry Officer shall submit the inquiry report after completing the inquiry within 180 days from the date of his/her appointment as the Inquiry Officer. Extension of time beyond 180 days can be granted only by the Authority as may be prescribed.
13. Letter regarding engaging a retired officer as the Inquiry Officer will only be issued with the approval of the Disciplinary Authority of the Ministry/Department/ Office concerned.
14. Any issue arising out of this O.M. between the Inquiring Officer and the Disciplinary Authority will be decided by the Secretary, DoPT whose decision shall be final and binding on both parties.
15. These instructions will be applicable prospectively for processing the Bill submitted by the IOs / POs.
16. All the Ministries/Departments are requested to bring these instructions to the notice of all concerned under their control.
17. This issues with the concurrence of Department of Expenditure, Ministry of Finance vide their I. D. Note No. 14/4/2009-E.II(B) dated 26/10/2022.

(Sign of Authority)
Rupesh Kumar
Under Secretary to the Govt. of India
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To,

- i. All Ministries/Departments of the Govt. of India.
- ii. Department of Financial Services, Ministry of Finance, Jeevan Deep Building, Parliament Street, New Delhi.
- iii. Department of Public Enterprises, CGO Complex, Lodhi Road, New Delhi.
- iv. Railway Board, Rail Bhavan, Delhi.
- v. Union Public Service Commission/Supreme Court of India/ Election Commission of India/ Lok Sabha Secretariat/ Rajya Sabha Secretariat/Cabinet Secretariat/Central Vigilance Commission/President's Secretariat/ Prime Minister's Office/Planning Commission.
- vi. Staff Selection Commission, CGO Complex, Lodi Road, New Delhi.
- vii. Office of the Chief Commissioner for Disabilities, Sarojini House, 6, Bhagwan Das Road, New Delhi.
- viii. Office of the Comptroller & Auditor General of India, 10, Bahadur Shah Zafar Marg, New Delhi.
- ix. All Officers and Sections in the Ministry of Personnel, Public Grievances and Pensions and all attached/subordinate offices of this Ministry.

Reference:

1. [DoPT's O. M. No. 142/15/2010-AVD.I dated 31st July, 2012](#)
2. [DoPT's O. M. No. 142/40/2015-AVD.I dated 15th September, 2017](#)
